

This Agreement is entered into on 04/22/2026 between, Dallas Center-Grimes Community School District, 2405 West 1st Street, Grimes, Iowa (“Operator”) and Atlantic Bottling Company, LLC, 3600 Army Post Rd., Des Moines, Iowa (“ABC”) (“Agreement”). Operator and ABC shall sometimes be referred to individually as a “Party” or collectively, the “Parties”.

WHEREAS, ABC is in the business of supplying high quality non-alcoholic beverages to the public;

WHEREAS, drink+ Lab, LLC (“drink+LAB”) is a subsidiary of ABC and provides high quality vending services to the public; and

WHEREAS, Operator would like to enter into an exclusive arrangement with ABC whereby ABC and/or drink+LAB, would provide such non-alcoholic beverages and vending services to Operator at all of its locations on the terms and conditions as set forth herein.

NOW, THEREFORE, for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Parties agree as follows:

1. **TERM**

The term of this Agreement is five (5) years beginning 10/01/2026 through 11/30/2031 (“Term”). The Term may be extended as set forth in Paragraph 7, below.

2. **DRINK+LAB, LLC IS AN APPROVED SUBCONTRACTOR**

The Parties acknowledge and agree that (1) drink+LAB is an approved subcontractor of ABC hereunder and (2) that ABC may assign all or some of its obligations hereunder to drink+LAB, including, without limitation the payment of Commissions (defined below in Section 6 (b)), below. drink+LAB and ABC shall be collectively referred to herein as “ABC”.

3. **OPERATOR LOCATIONS**

This Agreement shall include all Operator location(s) currently operating and set forth on **Schedule A** attached hereto (“Locations”) and all future location(s) Operator may open during the Term of this Agreement Term. Operator shall notify ABC in writing at least 30 days prior to opening any future location. The Parties shall amend **Schedule A** within 30 days of ABC receiving such written notification.

4. **EXCLUSIVITY FOR NON-ALCOHOLIC BEVERAGES**

ABC acknowledges that this Agreement does not grant exclusivity with respect to any third-party food service provider operating the Dallas Center- Grimes Food Service program during the school day. ABC does request the right to present its products and pricing for consideration in lunch line cafeterias.

During the Term, Operator appoints ABC as the exclusive supplier of all non-alcoholic beverages (carbonated and uncarbonated, isotonic and non-isotonic), including, without limitation, Coca-Cola products and any brand extensions thereof, sports drinks, tea, juice, water, enhanced water, and milk at all of Operator’s Locations (collectively, “Beverages”) except as expressly set forth above with respect to third-party food service providers.. Operator shall not purchase, distribute, sell, serve or offer as samples any competing products from other suppliers at any of its Locations during the Term hereof.

In addition, Operator shall purchase all beverage-related products (i.e., cups, lids, and CO2, if

applicable) directly from ABC, except with respect to third-party food service providers as described above. Operator shall not purchase, distribute, sell, serve or offer as samples any competing beverage-related products or related items from any other supplier at any of its Locations during the Term hereof.

In the event the Operator employs a third-party concessionaire, Operator will cause and ensure such concessionaire purchases all requirements for Beverages and beverage-related products from ABC as required by Operator hereunder. Such purchases shall be made at prices set forth in this Agreement unless The Coca-Cola Company ("TCCC") has a national agreement with the contracted concessionaire. In that case, ABC will honor the nationally contracted price between the concessionaire and TCCC.

Operator acknowledges that there will be no duplication of allowances, funding, or benefits (including pricing) offered or paid hereunder by ABC. To be clear, only one party, the Operator or the concessionaire, will be entitled to the allowances, funding or benefits (including pricing) offered or paid hereunder by ABC.

5. PRICING AND INVOICING (NON-VENDING)

The non-vending product pricing has been set forth on **Schedule B** attached hereto. Product pricing does not include any can and/or bottle deposits. Bottle/can pricing may be subject to no more than a 4.5% increase on a calendar year basis. Notwithstanding anything herein to the contrary, the price ceilings are subject to additional adjustments greater than stated ceilings in the event of a documented substantial and unforeseeable increase in a major component of ABC's cost of goods, manufacture, or delivery.

If credit terms are not granted, payment terms will be cash on delivery or cash on delivery via ACH bank transfer, determined in the sole discretion of ABC.

6. EXCLUSIVITY FOR ALL VENDING SERVICES

(a) Vending Services. During the Term, Operator appoints ABC, as the exclusive supplier of all vending services, which will include Beverages and snack foods contained therein ("Vending Services"), at all of Operator's Locations. Snack foods shall include, without limitation, gum, chips, jerky, candy, pastries, cookies, crackers, bars, cold foods, fruit, and prepackaged meal items (salads, sandwiches, etc.) as well as any items consistent with unattended retail (i.e., other products distributed by ABC. Operator shall not allow any other vending equipment to be placed at any of its Locations during the Term hereof. ABC shall, in its sole discretion, determine which (i) snack foods, (ii) prepackaged meal items, and (iii) any other items consistent with unattended retail are sold via its Vending Services. ABC reserves the right to adjust vending rates periodically throughout the Term of the Agreement.

(b) Commissions. ABC shall pay Operator commissions only on the Beverages set forth in this Section 6(b) sold through the Vending Services, including unattended retail locations. ABC reserves the right to adjust vending rates periodically throughout the Term of the Agreement. Commissions shall be calculated on the revenue collected after tax and applicable deposits have been deducted. Commissions will be paid on an annual basis as set forth in **Schedule C** attached hereto ("collectively, Commissions").

7. MINIMUM VOLUME COMMITMENT AND TERM EXTENSION

- (a) Volume commitment. During the Term, Operator agrees to purchase from ABC, a minimum total volume of 9,000 cases ("Minimum Volume Commitment"). The Minimum Volume Commitment may be met by Operator purchasing Beverages from both the non-vending and vending categories.
- (b) Term Extension for Minimum Volume Commitment. If, at the end of the Term, the Minimum Volume Commitment has not been fulfilled (i.e., Operator has not paid for the Beverages in full), the Term shall automatically extend until the Minimum Volume Commitment is fully satisfied ("Extension Period"). During the Extension Period:
1. No Sponsorship Fees. ABC shall not be obligated to pay any additional Sponsorship Fees except those set forth in Paragraph 8, below.
 2. Marketing Fund. ABC shall not be obligated to increase the Marketing Fund as set forth in Paragraph 9, below.
 3. Rebates and Commissions. If applicable, Operator shall continue to pay product Rebate as set forth in Paragraph 10, below, and Commissions as set forth in Paragraph 6, above.

Except as set forth above, all other terms and conditions of this Agreement shall continue though the Extension Period. Upon fulfillment of the Minimum Volume Commitment, the Agreement shall terminate in accordance with the terms herein.

8. SPONSORSHIP FEES

ABC agrees to pay a total sum of \$42,500 over the Term as sponsorship fees ("Sponsorship Fees"). Sponsorship Fees are payable within 30 days of the date set forth below and shall be made according to the payment schedule below.

Year 1:	\$16,500
Years 2 - 5:	\$6,500/annually

Each additional equal annual payment required hereunder shall be made within 13 months of the previous payment.

Remit to:	Dallas Center-Grimes Community School District 2405 West 1 st Street Grimes, Iowa 50111
-----------	--

9. INTENTIONALLY DELETED

10. REBATES

ABC agrees to pay a rebate on each of the following products purchased from ABC by Operator. Rebates are paid on an annual calendar year basis. Rebates will be deposited to Operator's bank account via ACH deposit unless Operator has been granted credit privileges and Operator has a past

due balance. In such instance, ABC will apply the rebates first to any balance owed to ABC before depositing any rebates into Operator's bank account.

Rebate Amount:

\$4.00/case

Package:

20oz SSD, Dasani, Powerade (24 per case)

11. COCA-COLA BRANDED POS, MERCHANDISING, TUMBLERS, DONATED PRODUCT

At no charge to Operator, in year one (1), ABC shall replace all Gatorade supplies/equipment with similar Powerade/Bodyarmor supplies/equipment.

In years 2 – 5, ABC shall supply menu boards, Coca-Cola branded tumblers/cups, umbrellas, Powerade supplies, and/or merchandising up to a \$1,000 value annually. Specific items shall be mutually agreed upon. Operator may use any branded merchandise in its sole discretion.

12. EQUIPMENT OWNERSHIP; EQUIPMENT SERVICING AND MAINTENANCE

All Equipment shall be set forth on **Schedule D** attached hereto. Ownership and all rights, title, and interest to the Equipment and the snack foods and Beverages contained therein shall remain at all times with ABC.

Operator shall not remove any tags or stickers from the Equipment identifying the ownership of the Equipment. Operator shall not and shall not allow any person or entity to service, maintain, remove or tamper with the Equipment except as authorized by ABC in writing.

ABC shall be responsible for the installation, operation, and maintenance of the Equipment. ABC will provide Operator with reasonable, free service and/or maintenance to its Equipment; provided, however, Operator will bear the cost of any service required to the Equipment due to Operator permitting the service of the Equipment be performed by any person or company other than ABC or its authorized service representatives. Operator shall be responsible for any damage to the Equipment caused by Operator, its agents, or employees.

ABC represents and warrants that all Equipment is in good working order and is fit for its intended purpose. Operator represents that electrical service at each of the Operator's Locations is adequate and up to the local municipal code for the installation of Equipment. Further, Operator represents that water service at each of its Locations, including water pressure and quality, is adequate for dispensing post mix fountain products if applicable.

ABC reserves the right to evaluate the performance of the Equipment and may remove any underperforming Equipment, as determined solely by ABC, if deemed necessary. Operator will be given 30 days' written notice before any Equipment is removed.

13. PROPRIETARY MARKS

Neither Operator nor ABC will make use of any of the other party's trademarks or logos (either alone or in conjunction with its or another party's trademarks or logos) without the prior written consent of that party, and all use of the other party's trademarks shall inure to the benefit of the trademark owner.

14. ELECTRONIC DATA

Operator acknowledges that users of the Equipment may need to enter and transmit their personal, electronic and other confidential data and information, including without limitation, names, credit or

debit card information, account codes, PIN numbers, etc. (collectively, "Data") to utilize the Equipment and pay for the Beverages, snack food products, and unattended retail products.

15. DISCLAIMER

Except as stated herein, ABC does not make any representation or warranty, and expressly disclaims all warranties, express, implied, statutory or otherwise, relating to or arising out of this Agreement, the Equipment, the Beverages, the snack foods, or the unattended retail products, including without limitation, any warranties of title, quality, non-infringement, merchantability or fitness for a particular purpose and any implied warranties arising from course of dealing, course of performance and usage of trade.

16. LIMITATION OF LIABILITY

Neither party shall be liable to the other party, its employees, officers, directors, agents, customers, clients, successors, assigns and affiliates, or to any person or third party, whether in contract, tort, negligence, strict liability, equity or otherwise, for any property or casualty damage, loss, theft, vandalism, burglary, equipment failure, food contamination, illness, criminal acts of third parties or personal injuries or for any direct, indirect, incidental, consequential, special, punitive or exemplary damages of any kind arising from or relating to this Agreement, the Equipment, the Beverages, the snack foods or other unattended vending products, including, without limitation, any loss of goodwill, work stoppage, cost of procurement of substitute goods, loss or corruption of data, security breach, loss of privacy, lost profits, lost savings or rebates, lost time, lost business, lost opportunity or business interruption.

17. REPORTS AND CLAIMS

ABC agrees to perform financial reporting over all vending equipment consistent with all applicable financial accounting and auditing standards in the industry. ABC shall provide a report on products sold, volume, and monies collected from each vending machine with each commission payment and shall report on products sold to the concession areas to the Operator's Business Manager or designee. ABC agrees to provide Operator with a copy of any audit materials generated upon request. In no event will ABC accept any claims of discrepancies or errors in, pricing, rebates, commissions, funding, discounts, or other consideration provided under this Agreement (collectively, "Claims") more than two (2) years from the date of invoice or from the date of funding or consideration, as applicable. At no time during the Term shall ABC be subject to any type of audit by Operator or anyone acting on behalf of Operator.

In the event there is an ongoing dispute between the parties lasting longer than 90 days, regarding funding, discounts, commissions, rebates or other consideration hereunder, either Party may terminate this Agreement upon 30 days' written notice.

18. TERMINATION; EARLY TERMINATION FEE, AND FAILURE TO PERFORM

- (a) Termination. ABC's sole remedy for Operator's breach of any of its representations, warranties, or covenants set forth in this Agreement is to terminate this Agreement by providing written notice to the Operator and recover its actual damages associated with Operator's breach of this Agreement in an amount not to exceed \$1,000. The Operator may terminate this Agreement at any time for any reason or for no reason by providing written notice to ABC. Upon termination, the Operator shall (i) return

any Equipment, , and (ii) pay to the ABC the unearned portion of any conversion fees or sponsorship payments. If Operator breaches any of its representations, warranties or obligations set forth in this Agreement, ABC may terminate this Agreement immediately upon written notice to the Operator. In the event this Agreement is terminated by ABC, Operator shall (i) return all Equipment, (a) (ii) reimburse ABC the cost of removing and refurbishing the Equipment, and (iii) pay to the ABC the cost of any permanent signage or scoreboard(s) provided as part of this Agreement. (b) In addition, ABC may terminate this Agreement immediately if Operator is unable to pay its bills, becomes insolvent or bankrupt, however evidenced.

Operator may terminate this Agreement only in the event ABC is in breach of its representations, warranties and obligations set forth herein and fails to cure such breach within thirty (30) days of receiving written notice from Operator of the same.

Early Termination Fee. In the event Operator terminates this Agreement prior to the end of the Term for any reason other than a breach by ABC, Operator shall be required to pay an early termination fee as liquidated damages, in the amount of \$750.00 per month, for each month remaining in the Term ("Early Termination Fee"). No partial monthly pro-ration will be applied. For example, if the Early Termination Fee is \$420 month and there are 15 months remaining in the Term when Operator terminates this Agreement for any reason other than a breach by ABC, Operator will be required to pay \$420 x 15 months or \$6300.

The Early Termination Fee shall be due and payable to ABC within 30 days from the termination date. Failure to pay may result in additional charges, including interest at a rate of 1.5% per month (or the highest rate permitted by law) and reasonable collection costs.

This provision will not apply in the event the Agreement is terminated upon the mutual agreement of the Parties or due to a Force Majeure Event (as defined in Paragraph 22, below).

Failure to Perform. ABC shall have the right to withhold and not pay further any amounts which may become payable to Operator pursuant to this Agreement if: (i) Operator has materially failed to perform any of its obligations hereunder, (ii) ABC's rights hereunder have been lost, limited or restricted, or (iii) there exists a bona fide dispute between the parties.

Nothing in this section shall operate to restrict ABC's other remedies in the event of a breach by Operator. Notwithstanding anything in this Agreement to the contrary, ABC may seek injunctive or other equitable relief in any court of competent jurisdiction to protect any actual or threatened (i) breach of exclusivity required hereunder or (ii) breach of ABC's confidentiality rights or hereunder.

19. INDEMNITY

ABC shall defend, indemnify, and hold the Operator, including its directors, officers, employees and agents, harmless from and against all claims, suits, liabilities, costs and expenses, including reasonable attorney's fees and costs related to (a) material breach of this Agreement by ABC, (b) injury to, including death of persons or any loss of or damage to property in any manner arising from the willful misconduct or negligence of ABC, its employees or agents in the course of their duties; and (c) claims arising from products supplied by ABC.

Operator will defend and indemnify ABC, and its affiliates, and each of their respective officers, agents, employees, directors, shareholders, affiliates, successors, and assigns (hereinafter collectively the "Indemnified Parties") against, and hold the Indemnified Parties harmless from, any and all claims, actions, suits, proceedings, demands, damages, and liabilities of whatever nature, and all costs and expenses, including without limitation, the Indemnified Parties' reasonable attorneys' fees and

expenses, relating to or in any way arising out of (i) the unauthorized maintenance, possession, use, operation, or control of the Equipment or any portion thereof, (ii) any act or omission of Operator, its employees, subcontractors or agents (collectively "Operator's Representatives"), including but not limited to any loss or damage to or sustained by the Indemnified Parties arising out of Operator's or Operator's Representatives failure to comply with all the obligations, representations and warranties of this Agreement, and/or (iii) any claims for liability in tort with respect to the Equipment, excluding any claims are the sole result of the Indemnified Parties' gross negligence or willful acts. The provisions of this Section 18 will survive termination and expiration of this Agreement. This indemnity includes claims brought by any third party whether the claim arises under contract, warranty, negligence or any other liability theory.

20. CONFIDENTIALITY

Each Party acknowledges that during the Term of this Agreement it may obtain or have access to information about the other Party that is proprietary or confidential in nature ("Confidential Information"), including without limitation the terms of this Agreement. Confidential Information may be used by the Parties only in carrying out the purposes of this Agreement. Each Party agrees that to the extent permitted by law it will maintain the confidentiality of and not disclose to third parties or use, without the prior written consent of the other Party, the other Party's Confidential Information (except to make necessary disclosures to the respective Party's employees, lenders, legal counsel, accountants or consultants.).

Each Party shall be responsible for the unauthorized disclosure of any Confidential Information by its employees or agents. For purposes of this Paragraph, Confidential Information does not include information that (i) now is, or hereafter becomes publicly known through no fault of the receiving Party, (ii) was in the lawful possession of the receiving Party before or at the time of disclosure and was not previously obtained from the other Party, or (iii) otherwise lawfully becomes available to the receiving Party from another source. The obligations of this Section shall survive five (5) years from the date of termination of this Agreement. Notwithstanding anything to the contrary herein, the obligations of confidentiality hereunder with respect to Confidential Information that constitutes a trade secret shall continue to apply so long as such Confidential Information continues to constitute a trade secret under applicable law.

21. INSURANCE

Operator shall maintain in full force and effect during the Term of this Agreement a policy of (a) commercial general liability and property damage insurance in the amount of at least \$1,000,000 Million per occurrence/\$2 Million aggregate under which ABC and drink+LAB, as well as their respective officers, directors, employees, subcontractors and agents are named as additional insureds and (b) property and casualty insurance against risks covered by standard forms of fire, theft and extended coverage in at least the full replacement value of the Equipment, including snack foods and other unattended retail items therein, under which ABC shall be named as a loss payee. The amounts of insurance required herein may be satisfied by Operator purchasing coverage for the limits specified or by any combination of the underlying policy and umbrella limits, so long as the total amount of insurance is not less than \$1,000,000 combined single limit and \$2,000,000 aggregate limit. Coverage should be placed with a reputable or financially responsible carrier or carriers with a

minimum A.M. Best rating of A+. Operator's insurance shall apply as primary and non-contributory insurance with respect to any insurance or self-insurance programs afforded to ABC. Operator shall cause its insurers to endorse the required insurance hereunder to waive any rights of subrogation against the ABC. The insurance endorsement shall be primary over any insurance maintained by the Indemnified Parties. Upon execution hereof, Operator shall provide ABC with evidence of such

insurance pursuant to the Certificate of Insurance Request Form attached hereto as **Schedule F**.

22. OPERATOR AUTHORITY

Operator represents and warrants that it has full right and authority to enter into this Agreement and to perform its obligations hereunder. Operator warrants that by entering into this Agreement it will not be in conflict with any other agreement it is a party to. Operator further warrants the execution of this Agreement by the representative whose signature is set forth on the signature page hereof has been duly authorized by all requisite corporate action of Operator.

23. FORCE MAJEURE

No Party shall be responsible to the other Party for any failure to carry out its obligations under this Agreement, other than the obligation to pay funds due, to the extent and for the length of time that the performance is rendered impossible due to a Force Majeure Event. A Force Majeure Event shall mean any unforeseeable cause beyond a Party's reasonable control, including, without limitation, any act of God, emergency, war, act of terrorism, accident, legal restriction, government action, mechanical difficulty, or pandemic. In the event a Force Majeure Event continues for more than 90 days, either Party may terminate this Agreement by written notice to the other Party.

24. SETOFF

Operator agrees that ABC is authorized to set off any amount owed to ABC that is sixty (60) days past due, including without limitation amounts owed for the purchase of Beverages, snack foods or other unattended retail products, against any Commissions, if applicable, and other funding required to be paid by ABC to Operator under this Agreement.

25. GOVERNING LAW

This Agreement and any claims related to its subject matter will be governed by the laws of the State of Iowa, without references to its conflicts or choice of law principles. Operator hereby agrees and submits to the exclusive jurisdiction and service of process of the courts of Polk County, Iowa or the United States District Court with jurisdiction over Polk County, Iowa. In any action or suit to enforce any right or remedy under this Agreement or to interpret any provision of this Agreement, the prevailing party shall be entitled to recover its costs, including reasonable attorney's fees.

26. ENTIRE AGREEMENT AND MODIFICATION

This Agreement, including the attached Schedules, constitute the complete and exclusive agreement between the Parties concerning its subject matter. This Agreement supersedes all prior or contemporaneous oral or written communications with respect to the subject matter covered by this Agreement. This Agreement, including any Schedule, may be changed only by a written agreement signed by an authorized representative of both Parties.

27. ASSIGNMENT

The Agreement will bind and inure to the benefit of each party's permitted successors and assigns. Operator may not assign this Agreement by operation of law or otherwise without ABC's prior written consent. ABC may assign any of its obligations hereunder to drink+LAB.

28. NOTICE

Any notice required or permitted to be given to either party pursuant to this Agreement shall be sufficient if sent to such party by hand, email, or by registered or certified mail, return receipt requested, postage prepaid, or by overnight commercial courier addressed as provided below:

ABC:

Atlantic Bottling Company, LLC
Attn: Scott Ites
3600 Army Post Road
Des Moines, IA 50321
Email: sites@atlanticbottling.com

Operator:

Dallas Center-Grimes Community School District
Attn:
2405 West 1st Street
Grimes, Iowa 50111

29. WAIVER

The right of any party under any provision of this Agreement shall not be effected by its failure to require the performance of the other party of that provision or any of provision of this Agreement, nor shall the waiver of any party of a breach of any provision hereof constitute a waiver of any succeeding breach of the same or any other provision or constitute a waiver of the provision itself.

30. INDEPENDENT CONTRACTOR

Nothing in this Agreement shall be construed to constitute either party, or any of its employees or agents, as an employee, agent, associate, joint-venture or partner of the other party.

31. COUNTERPARTS

This Agreement may be executed in or more counterparts, each of which shall be deemed to be an original, but all of which together shall constitute one and the same instrument.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date set forth below.

Signature _____ Title _____ Date _____
Atlantic Bottling Company, LLC

Signature _____ Title _____ Date _____
Dallas Center-Grimes Community School District

ATLANTIC *Coca-Cola*
BOTTLING COMPANY

SCHEDULE A: OPERATOR LOCATIONS

The below list are the Locations to be included in this Agreement. Additional locations may be added by mutual agreement of the Parties pursuant to Section 3 of the Agreement.

- 1) Dallas Center-Grimes High School, Grimes, Iowa
- 2) Dallas Center-Grimes Middle School, Dallas Center, Iowa
- 3) Oak View, Grimes, Iowa
- 4) Dallas Center Elementary School, Dallas Center, Iowa
- 5) Heritage Elementary School, Grimes, Iowa
- 6) North Ridge Elementary School, Grimes, Iowa
- 7) South Prairie Elementary School, Grimes, Iowa
- 8) Dallas Center-Grimes Preschool, Grimes, Iowa

SCHEDULE B: NON-VENDING WHOLESALE PRODUCT PRICING

ATLANTIC *Coca-Cola* BOTTLING COMPANY

SCHOOL		Effective date: Per contract or Jan. 1, 2026			
					
20oz bottles (24 ct.) \$27.40 \$1.14		12oz 12pk Can Core (24 ct.) \$12.71 \$0.53		12oz Minute Maid (24 ct.) \$28.35 \$1.18	
					
14oz Failife (12 ct.) \$21.90 \$1.83		20oz Vitamin Water (12 ct.) \$18.53 \$1.54		BODYARMOR 28OZ 15PK (15 ct.) \$31.88 \$2.13	
					
20oz Vitamin Water (12 ct.) \$18.53 \$1.54		16oz BODYARMOR (12 ct.) \$21.50 \$1.79		BODYARMOR FLASH IV (12 ct.) \$25.50 \$2.13	
					
14oz Core Power (12 ct.) \$30.90 \$2.58		14oz Core Power Elite (12 ct.) \$45.97 \$3.83		13.7oz Dunkin Coffee (12 ct.) \$28.85 \$2.40	
					
1 Liter smartwater (12 ct.) \$23.76 1.98		20oz smartwater (24 ct.) \$32.59 \$1.36		1 Liter Dasani (12 ct.) \$20.92 \$1.74	
					
2-liter bottles (8 ct.) \$23.34 \$2.92		8oz Glass CSD (24 ct.) \$23.45 \$0.98		7.5oz cans (24 ct.) (24 ct.) \$14.80 \$0.62	

ATLANTIC *Coca-Cola* BOTTLING COMPANY



12oz Monster (24 ct.)
(24 ct.)
\$42.44
\$1.77



16oz Monster
(24 ct.)
\$46.80
\$1.95



15oz Monster Java
(12 ct.)
\$27.17
\$2.26



24oz Monster
(12 ct.)
\$37.04
\$3.09



16oz Reign
(12 ct.)
Not Available



12oz Reign Storm
(12 ct.)
Not Available



16oz NOS
(24 ct.)
\$44.19
\$1.84



24oz NOS
(12 ct.)
\$38.61
\$3.22



16oz Bang
(12 ct.)
Not Available



10oz Tummy Yummies
(12 ct.)
\$12.80
\$1.07



18.5oz Gold Peak Tea
(12 ct.)
\$18.94
\$1.58



16oz Peace Tea
(24 ct.)
\$42.42
\$1.77

SCHEDULE C: COMMISSIONS

Commissions will be paid on an annual basis as set forth below:

Product	Vend Rate	Commission
20oz CSD	\$2.50	10%
20oz Dasani	\$2.00	10%
20oz PowerAde	\$2.50	10%
18.5oz Gold Peak	\$3.00	10%
16oz Bodyarmor	\$2.50	10%
20oz Vitamin Water	\$2.50	10%

SCHEDULE D: EQUIPMENT

“Equipment” shall mean any beverage equipment, vending equipment, and unattended retail equipment supplied by ABC.

During the Term, ABC will lease to Operator Equipment at no cost (except as prohibited by law, rule, or regulation, in which case the rent charged shall be the lowest legal rate available). Leased Equipment is provided for the sole purpose of exclusively selling ABC products and/or beverages.

ABC shall retain title to all leased Equipment. Equipment quantities shall be mutually agreed upon. Operator shall and shall cause each Location to keep such Equipment in good working order and free of all liens.

ABC agrees to provide Equipment necessary for vending services. Additional equipment or revisions to the initial equipment list may occur as mutually agreed upon by written amendment to this Schedule.

The Equipment which will be provided to Operator is as follows:

Restaurant

- 2 – Glass Front Vendors
- 8 – Stack Vendors
- 17 – 2 Door Coolers
- 1 – Small 1 Door Cooler
- 4923-4200-3362-1\10363-000